
Subject: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required
Date: Friday, March 14, 2025 at 12:54:10 PM Central Daylight Time
From: Mariana Osorio <mariana.osorio@medellinlegal.com>
To: Nick <nick@aribia.llc>
CC: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Attachments: image001.png, Image.jpeg, Image[76].jpeg, Image[84].jpeg, 2025 02 28 Letter of engagement 2- Nicholas Jones 2 Fully Executed.pdf

Dear Nick,

I hope you are doing well.

I would like to provide clarification regarding the service invoice. So far, 50% of the total amount has been paid, leaving the remaining 50% pending.

The invoiced services correspond to the processing of a power of attorney, as well as negotiations and communication with the tenants. It is important to note that this invoice does not include charges for conciliation or escrow.

Escrow is only charged when the transfer of funds to the account is completed. In this case, that transfer was not made because we did not reach that stage in the process.

Please do not hesitate to reach out if you need any further clarification.

I remain at your disposal for any questions.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Thursday, March 13, 2025 10:55:24 AM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Asunto: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Hi Mariana,

Thank you for your continued support. Below are my final directives to ensure eviction execution, legal enforcement, and alignment on service scope.

Additionally, can you help me confirm the scope of services, what has been delivered, and payments made (vs. owed)? I'd also like to discuss potential adjustments to reallocate any unused services toward property sale preparation if applicable.

1 Immediate Legal Execution & Tenant Enforcement

Please confirm execution of the following by end of business today, March 13, 2025:

Eviction Process & Legal Action

1. What was the final outcome of Monday's call with Camilo and Pilar
2. Has the "Restitution of Leased Property" process (eviction filing) been formally initiated? If not, what is preventing immediate action?
3. Given their argument about the lease's validity, does this qualify for an expedited eviction process?
4. If litigation is required, who would you recommend as the best attorney for eviction in Medellín?

Asset Retrieval & Property Access

1. When can ARIBIA LLC legally retrieve company-owned assets (fridge, washer, etc.)?
2. What legal process is required for immediate property access to assess its condition and prepare for sale?

Credit & Legal Consequences for Non-Compliance

1. If tenants continue to occupy the property unlawfully, what is the formal process for reporting their delinquency to Datacrédito, CIFIN, and TransUnion Colombia?
2. Would reporting impact their ability to obtain loans, rental approvals, or mortgages?
3. If their lease intent was misrepresented, does this meet the legal threshold for a fraud complaint?
4. Would an executive proceeding be advisable in this case, or is there a faster alternative?

2 Sale Preparations, HOA Involvement & Future Strategy

1. What sale preparations can be executed now while eviction is ongoing
2. Would notifying the HOA be beneficial for enforcement, or could it create unnecessary complications?
3. Can your firm assist in structuring the property sale, given the eviction complexities?

3 Scope Confirmation & Potential Adjustments

1. Can you confirm the full scope of services covered/rendered to date under our agreement?
2. Are there any prepaid services (conciliation, escrow) that were not utilized and can be reallocated?
3. Would your firm be available for additional advisory services on structuring the property sale while eviction is ongoing?

4 Immediate Confirmations & Next Steps

1. Confirm the outcome of Monday's call—whether tenants agreed to vacate or refused
2. If they refused to vacate, confirm that eviction is now in progress.
3. Confirm when ARIBIA LLC can proceed with asset retrieval and property access.
4. Clarify which sale preparations could proceed now.
5. Confirm if HOA involvement is an advantage or a hindrance
6. Confirm the formal process for reporting their delinquency to credit bureaus.
7. Confirm scope adjustments and any potential reallocation of services.

If you could confirm status of all requested actions, that would be much appreciated. Thanks, as always!

Best,
Nick Bianchi
President, ARIBIA LLC

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Tuesday, March 11, 2025 12:08:04 PM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Subject: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Dear Nick,

We are writing to update you on the negotiation process, address your concerns, and attach a document explaining the implications of the legal proceedings in the United States on the property here in Colombia. We recommend you read it carefully, as it is important for you to be informed.

1. Regarding yesterday's call: Initially, Camilo, with whom we communicated, was resistant to reaching an agreement. His main argument was that they would not take any action here until the dissolution legal proceedings in the United States were resolved. He also insisted that the lease agreement was simulated to facilitate his travel to the United States for embassy matters. Our response was clear, and we have attached it for your reference, translated into English.

After our response, they sent us some payment receipts, claiming they had paid more rent than you had informed us. ***However, today we have a second call scheduled with Mr. Camilo to finalize the negotiation and obtain a firm response from them.*** Rest assured, we have communicated to them that this is your final amicable action before initiating legal proceedings here and that the termination notice is final and non-negotiable.

2. Regarding sending them a letter stating that the process will seek maximum legal interest, we believe it is unnecessary. The agreement explicitly states that the total debt and interest will be charged, so they should already be aware of this situation.

3. If an agreement is not reached, we can certainly recommend attorneys who specialize in this area. Let's see how the negotiation concludes, and we will inform you accordingly.

4. We also want to clarify that if they decide not to agree and continue to insist on their version of events and the situation, their argument that the contract is simulated will need to be presented in the legal process, providing evidence that it was indeed orchestrated for someone's benefit and is invalid. For now, this argument does not affect us, and we can continue negotiating based on the existing contract.

Thank you for your attention, and we remain available for any further questions.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

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Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: lunes, marzo 10, 2025 4:21 p.m.

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Asunto: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Hi Mariana,

I truly appreciate the time and effort you and your team are dedicating to this matter. Your continued guidance is invaluable, and I'm grateful for your strategic approach to resolving this efficiently.

I have a few points for clarification and next steps:

Tenant Negotiation & Asset Retrieval

1. Thank you for scheduling the call with **Camilo and Pilar** today. Please ensure that:
 - They **acknowledge** that termination is final and non-negotiable.
 - The **pickup of ARIBIA LLC-owned assets (fridge and washer)** is formally addressed, with a clear pickup date.
 - They understand that **failure to vacate voluntarily will immediately escalate into legal proceedings**.
2. If they **refuse to vacate or fail to comply**, I agree that we should **immediately initiate the "Restitution of Leased Property" (eviction) and an executive proceeding** to recover unpaid rent and damages.
 - Given your firm does not handle litigation, could you **recommend an attorney in Medellín** who specializes in eviction and debt recovery cases?
 - What would be the **estimated timeline for eviction** under these legal proceedings?

Late Fees & Financial Leverage

I understand that late fees cannot be charged directly but can be pursued as damages in an **executive proceeding**. Given this:

- Should we still **formally notify them** that legal action will include financial damages for non-payment?
- Would a **formal letter reinforcing financial consequences** help increase negotiation pressure?

Sale Strategy & HOA Involvement

- I acknowledge the risks of selling **before eviction is completed** and will follow your advice on waiting if they refuse to negotiate.
- However, **if they vacate voluntarily, I'd like to move forward with the sale immediately**. I'd appreciate your help in reviewing the purchase agreement when the time comes.
- Understood regarding the HOA—**we'll keep the matter private** unless a court ruling requires notification.

Final Confirmation of Next Steps

1. **Please proceed with the call today** and update me immediately afterward.
2. If tenants remain **uncooperative**, I'd like to begin identifying the **litigation attorney** for eviction & debt recovery.
3. Confirm if a **formal financial damages letter** would be advisable as a pressure tactic.

I truly appreciate your insights and continued support. Looking forward to the update after today's call.

Best,
Nick Bianchi
President, ARIBIA LLC

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Sent: Monday, March 10, 2025 1:48:30 PM
To: Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Subject: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Hi Nick,

No worries—we understand how important this situation is for you. We're here to support you, listen to your concerns, and keep you informed about the progress.

We've reached out to Pilar Montealegre and Camilo Arias, sending them the termination notice along with the proposed payment and eviction agreement. Attached, you'll find our conversations with them. Their response so far is that they have received the documents and would like to schedule a call with us this afternoon to clarify certain aspects of the agreement. This call will be crucial for negotiating with them and securing their acceptance. During the conversation, we also plan to inform them of your intention to collect your refrigerator and washing machine and to schedule the pickup. Our goal is to handle this matter directly through negotiation, rather than involving these items in legal proceedings, as we believe direct discussions may be more effective.

Regarding interest charges, since this is a residential lease agreement, late payment interest cannot be directly charged between landlord and tenant. Instead, such interest could only be claimed in an executive legal proceeding where the outstanding debt is pursued as damages for non-compliance. Therefore, at this stage, it's best not to determine specific

interest charges, as they would only apply in the event of legal action.

Next Steps:

Nick, this is our step-by-step legal recommendation. It is important to mention that our firm does not provide litigation services. This means we would not be able to initiate eviction or enforcement proceedings, but we can recommend attorneys in the city who specialize in judicial processes.

- Today, we will have the call with Camilo and attempt to negotiate directly on your behalf.
- If, after the call, we are unable to reach an agreement and they continue to owe rent while refusing to vacate, our legal recommendation is to initiate a “Restitution of Leased Property” (Eviction Process) along with an executive proceeding to recover the unpaid rent and related damages.
- In this type of proceeding, the attorneys handling the case could request precautionary measures, such as freezing their assets, businesses, or wages, to ensure the debt is paid. If they refuse to negotiate, this would be the best course of action. The eviction process is relatively fast.

Regarding conciliation, as we explained, both parties must be willing to negotiate. If they are unwilling, the only viable options would be the two legal processes mentioned above, which provide direct solutions to the issue.

Regarding the Sale of the Property:

From a legal perspective, we recommend waiting until the eviction process is completed (if they refuse to negotiate) before proceeding with the sale. This will prevent complications with a future buyer. Otherwise, the new owner would inherit your contractual position as the landlord, and if the tenants remain unwilling to leave or pay, you could find yourself in an even more complex legal situation.

However, if they do agree to negotiate and sign the settlement, once they vacate, you can proceed with the sale immediately. We can assist you with drafting or reviewing the purchase agreement and handling the closing at the notary if needed.

Finally, we don't believe the building management or homeowners' association needs to be informed about these personal legal matters. They should only be notified if a court ruling is issued in the restitution process, should it reach that stage. For now, it's best to handle the matter privately.

Let us know if you have any questions.

Best,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

De: Nick <nick@aribia.llc>

Enviado: Monday, March 10, 2025 12:30:03 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Asunto: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Hi Mariana and Team,

First, I want to express my sincere appreciation for your team's support and patience throughout this process. I recognize that this situation has been complicated, and I truly appreciate your expertise and guidance. I also want to apologize if I have come across as abrupt at times—this has been a challenging and frustrating situation, and as you know, our priority is to move toward resolution as quickly as possible.

Key Confirmations & Next Steps

1. Tenant Communication & Legal Actions

- Confirm that all ongoing communications, agreements, and notices remain directed exclusively to Pilar Montealegre and Camilo Arias, excluding any further engagement with Luisa Arias to prevent unnecessary delays or interference.

2. Immediate Asset Retrieval

- Given the tenants' continued **breach of contract**, can ARIBIA LLC **include asset retrieval (fridge, washer) in legal filings** to ensure enforceability?
- If **immediate retrieval is not feasible**, please specify the **earliest enforceable date** for removal.

3. Late Fees, Interest, and Debt Collection Strategy

- Can you provide guidance on:
 - The **maximum legally enforceable late fees** and penalties we can apply?
 - The **best method** for documenting them to strengthen debt collection efforts?
- Are there **legal mechanisms beyond conciliation** to enforce unpaid debt, such as collections or alternative asset recovery strategies?

4. Conciliation & Judicial Acceleration Options

- If tenants do not respond within the legally required timeframe, **what is the most efficient procedural next step** for conciliation or alternative enforcement?
- Would **pursuing eviction and debt collection in parallel** help increase enforcement pressure and reduce delays?
- If judicial intervention is necessary, would **requesting a formal case timeline** help expedite resolution?

5. HOA & Property Listing Considerations

- Would **notifying the HOA in advance** of legal actions be advisable for compliance and coordination?
- Are there any **HOA rules that could support** or delay the eviction process?
- Would **listing the property before eviction** be finalized impact our legal standing?
- Can we **issue a formal pre-sale notice** to potential buyers while legal proceedings are ongoing?

6. Sale Preparation & Legal Protections

- What is the best legal approach to structure the sale to protect ARIBIA LLC's assets from external claims?
- Can you remind me the scope of assistance your firm can provide, and what are the associated costs?

7. Confirmation of Immediate Actions

- Please confirm that all of the above steps are being executed immediately to prevent further delays or external interference.

Again, I want to thank you and your team for your patience and continued support. I know this process has been complex, and I greatly appreciate your efforts in guiding us through it. Looking forward to your prompt confirmation on these points.

Best regards,
Nick Bianchi
President, ARIBIA LLC

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Monday, March 10, 2025 10:52:03 AM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Subject: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Hi Nick,

We hope you're doing well.

We have reviewed your case and your message, and we would like to address the following points with you:

1. Luisa's Version: We appreciate the clarification and fully understand your position. You are our client, and we will proceed as you instruct. We just wanted to confirm this information with you, as it is a key aspect of the case.
2. Tenants: We understand that the tenants are Pilar and Camilo, so we will contact them directly. Initially, we tried to reach them without success, and it was Luisa who contacted us. However, you can be sure that the agreement and communications will be directed to them.
3. Immediate Actions: Today, we will contact the tenants and send them the payment agreement. On Saturday, March 8, we were outside of business hours, so it was not appropriate to establish communication at that time. After sending the email, we will explain the terms of the agreement and request access to remove your belongings. We will keep you updated on any developments.
4. Conciliation: Conciliation is a conflict resolution mechanism aimed at avoiding a judicial process. For it to be valid, it must take place at an authorized conciliation center, which involves a cost depending on the amount of the debt and is subject to the center's availability for scheduling. One of the key requirements for conciliation to succeed is that all parties are willing to negotiate and compromise. However, based on our communication with Luisa and the lack of response from the tenants, we do not see a clear willingness to negotiate on their part. We will continue insisting on the signing of the agreement, sending it to them, and seeking their acceptance, which can also be considered a form of pre-litigation negotiation. However, if they completely refuse and given the urgency of the matter, our legal recommendation is to proceed with the eviction and debt collection process, as explained in the legal opinion we previously sent you, which we are attaching again for your review.
5. Applicable Interest Rates in Colombia: According to the Civil Code, you can charge the maximum interest rate allowed by law. Since no specific interest rate was agreed upon in the contract, it will be calculated based on the current banking interest rate. The payment agreement will clearly outline the total updated debt amount and state that the legally permitted interest will be charged, which may be determined by a judge.

Please let us know if you have any questions or concerns.

Best regards



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

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De: Nick <nick@aribia.llc>

Enviado: Saturday, March 8, 2025 7:51:55 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Asunto: Re: Subject: Immediate Execution of Eviction Process – Confirmation Required

Dear Mariana and Team,

I appreciate your update and want to ensure that we stay aligned on the **core objectives** of this process while eliminating **any further delays**.

Clarifications & Key Focus

1. Legal & Procedural Focus Remains on the Tenants

- a. The tenants, **Camilo Arias & Pilar Montealegre**, have a **valid lease agreement** and have **failed to meet their rental obligations**. This is the **sole basis** for the eviction.
- b. **Luisa Arias is not a tenant, nor does she have any legal standing in this eviction process**. While she previously acted as a guarantor, her personal claims—including those regarding **U.S. tax structuring, business partnerships, or marital dissolution**—are **unrelated and should not be considered** in this process.

- c. Our actions must remain **strictly tenant-focused**, ensuring compliance with **Colombian law** while preventing **unnecessary external interference**.

2. Clarifications

a. ARIBIA LLC's Ownership & My Authority

- i. **Luisa's Removal:** Luisa Arias was formally removed from ARIBIA LLC on October 21, 2024, due to failure to meet obligations, abandonment of responsibilities, and financial mismanagement (see attached Formal Notice of Removal)
- ii. **Ownership Transfer:** As of October 29, 2024, ARIBIA LLC is fully owned by IT CAN BE LLC, and all prior ownership interests were nullified (see attached Amendment to Operating Agreement)
- iii. **My Role:** As President of ARIBIA LLC, I maintain full decision-making authority over the company and its assets, including the legal enforcement of this eviction (see attached amendment).
- iv. **Legal Actions:** All legal actions, including this eviction, are executed under ARIBIA LLC's authority, in compliance with our ownership and legal governance structure.

b. Acknowledgment of Marital & Business Status

- i. Luisa and I were legally married in the United States. That marriage is currently undergoing dissolution, a process that is separate from this eviction case.
- ii. The dissolution has no impact on ARIBIA LLC's ownership of the property, nor on the tenants' legal obligation to pay rent.
- iii. Any documentation provided by Luisa regarding our dissolution is unrelated to this case and should not influence the eviction proceeding

a. Reaffirming Compliance & Authorization for Action

- i. My legal representatives in the U.S. have reviewed and approved engaging your firm and the approach we outlined to proceed with eviction under Colombian law
- ii. The priority remains executing the pre-established strategy without deviation, in accordance with the timeline we discussed.

3. Immediate Action Required

Given the time lost, we must act immediately to prevent **any further stalling** or procedural roadblocks:

- ✓ **Final Call to Tenants** → Today, March 8, 2025 (**Confirm completion**)
- ✓ **Final Lease Termination Notice Served** → Today, March 8, 2025
- ✓ **Conciliation Filing** → Filed no later than Monday, March 10, 2025 (**Before 8:30 AM CT / 9:30 AM Medellín Time**)
- ✓ **Asset Retrieval Coordination** → Confirm enforceable date
- ✓ **Final Charges & Late Fees** → Confirm maximum legal penalties before enforcement

4. Next Steps for Confirmation

☐ **Legal Focus & Tenant Action:** Please confirm that all further actions remain strictly against the tenants and that no further engagement with Luisa will take place, as this has already caused unnecessary delays.

Execution of Legal Notices & Conciliation Filing:

- ☐ **Final eviction notice must be served today (March 8, 2025).**
- ☐ **If the tenants refuse voluntary departure, conciliation must be filed Monday by 8:30am without delay.**
- ☐ **Enforcement of ARIBIA LLC-Owned Assets:** Please confirm whether ARIBIA LLC can legally remove its owned assets (fridge, washer, etc.) immediately or provide the soonest enforceable retrieval date.
- ☐ **Application of Maximum Legal Penalties:** Please confirm the maximum enforceable late fees and penalties under Colombian law before proceeding with final legal action.

5. Contact Information for Immediate Execution

- ☎ **Camilo Arias:** +57 319 560 7732
- ☎ **Pilar Montealegre:** +57 305 817 9645

6. Final Confirmation Needed

- ☐ **Confirm** all eviction actions will proceed on schedule.
- ☐ **Confirm** that all steps remain strictly focused on the tenants.
- ☐ **Confirm** that all necessary filings and penalties will be finalized by Monday morning.

7. Attachments for Reference:

8.  **[2024 10 29 IT CAN BE LLC Ownership Transfer Agreement]** (Confirms ARIBIA LLC is now fully owned by IT CAN BE LLC)
-  **[2024 10 21 Presidential Appointment]** (Confirms my authority over ARIBIA LLC's operations and legal matters)

Looking forward to your **immediate confirmation** so we can ensure the process moves forward **without any further delays**.
Best regards,

Nick
President, ARIBIA LLC

Best regards,
NickPresident
ARIBIA LLC

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Sent: Friday, March 7, 2025 4:34 PM
To: Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Nick,

I hope you're doing well.

As per your instructions, we had a call today with Luisa Arias. Through this email, we would like to share a summary of our discussion.

First, we informed her that the purpose of the call was to propose a final payment agreement, with the intention of resolving this matter amicably. During the conversation, we explained the details of the situation.

In response, she stated that she is your wife and a partner at Aribia LLC. She also mentioned that the lease agreement with her relatives was made for tax purposes in the United States. Additionally, she informed us that the partnership between Aribia LLC and your marriage is currently in the process of dissolution in the U.S. Upon our request, she provided us with a court order as evidence of this process.

Could you kindly clarify this situation and confirm whether all the information is accurate? This would slightly change the position we initially had. We need to know if this is correct in order to proceed accordingly.

Looking forward to your response.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

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Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Friday, March 7, 2025 1:31:40 PM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi Mariana,

Please find attached the **latest account statement**. One thing I haven't yet added, but I'd like your opinion on, is **whether we can legally apply late fees or additional charges for continued non-payment**. Let me know if this is enforceable and what the **maximum allowable penalties** are under Colombian law.

1. Anticipated Dispute Over Payments & Stalling Tactics

- They are **likely to dispute the total amount owed**, claiming they have made payments.
 - However, the amounts they may reference **were payments made by Luisa to a separate lease and account for "Cozy Castle"** (550 W Surf St 504, Chicago, IL).
 - **She is also in arrears on that lease (~\$18K)**, and we have already **credited that separate account against any equity she may claim**.
 - **Any request for a payment plan is just a stall tactic** aimed at delaying eviction and allowing for outside interference from Luisa or other parties.
- I guess Regardless of whatever they try to argue they are still violating the terms lease (with continued non-payment), Colombian law, and so largely doesn't matter what they believe or don't at this juncture (?)

2. Highly Likely Interference from the U.S. – Urgency Required

- We need to **move as quickly as possible to eliminate any window for outside interference**.
- Luisa has **previously attempted to involve U.S.-based legal representation** in an effort to stall and create complications.
- **If we allow any delays, it is very likely that external interference will escalate, further complicating the process.**
- **This is why every step must be executed immediately, one after another, with no gaps.**

3. Execution Plan – Voluntary Eviction or Forced Conciliation

We will **first offer a voluntary eviction**—if they do not accept, we will **immediately proceed with formal conciliation** to enforce their removal.

1. Step 1: Final Legal Call (Immediate) – Your firm should contact them today to make it absolutely clear:

- **This is their last opportunity for an amicable resolution**
- **If they do not vacate immediately, all offers for support or payment flexibility will be off the table.**
- **Legal conciliation will proceed to enforce their removal.**

2. Step 2: Voluntary Eviction Agreement (Issued Immediately After Call)

- Offer them the **final opportunity to leave voluntarily**.
- Confirm **their illegal occupancy and the legal consequences** of staying
- **Hard deadline for voluntary departure—no extensions.**

3. Step 3: If They Refuse, We Initiate Formal Conciliation (Immediate Filing)

- **File for conciliation immediately to force their compliance through legal means**
- Ensure the process is structured to **eliminate further delays** while maintaining legal force.

4. Step 4: Immediate Repossession of ARIBIA LLC-Owned Fridge & Washer

- **Can we legally remove these items before the conciliation process?**
- If not, confirm **exactly when we can enforce removal**

5. Step 5: Apply Maximum Late Fees & Penalties

- **What is the maximum** we can legally add to their outstanding balance
- Ensure the **final legal claim captures every enforceable charge, penalty, and legal fee.**

4. Timeline & Execution – No Delays, No Gaps

This must move **without any time gaps between steps**:

1. **Step 1: Final Call → Same day, immediately.**
2. **Step 2: Voluntary Eviction Agreement → Sent immediately after the call.**
3. **Step 3: Conciliation Filing → Filed immediately if they refuse voluntary departure.**
4. **Step 4: Asset Retrieval → Coordinated for immediate enforcement.**
5. **Step 5: Fees & Final Charges → Added before formal legal action.**

This is **their last chance to leave voluntarily**. If they refuse, we move straight into **conciliation with no further negotiation**.

Please confirm how quickly we can execute each step. **We cannot allow any space for external interference to delay this further.**

Thanks,
Nick

 [WhatsApp Chat - +1 \(630\) 442-4310 2024-11-11 10_01_22.zip](#)

Hi Nick,

I hope you're doing well.

I confirm that we have received the payment and thank you for your management of it.

I would like to outline our proposal for the next steps in the process:

1. Conciliation Call with the Tenants

We recommend starting with a phone call to understand their perspective and open a dialogue. We believe that listening to them first will enable us to present the agreement strategically, ensuring it is not received as an unexpected imposition.

2. Defining the Parameters for Conciliation

Before proceeding with the call, we would like to know your position on the following points:

- **Adjustment of the Debt Amount:** The current debt reflects the amount as of December. Would you prefer to maintain that value, or update it to the current amount?
- **Payment Installments:** Are you open to allowing the tenants to pay the debt in installments? Given the high amount, this might be contributing to their reluctance. For example, setting a monthly payment based on their capacity might be a viable option. We would like to know how flexible you are on this matter so we can negotiate accordingly.

Once we have completed the call, we will keep you informed about the discussion and proceed immediately with a written payment agreement and the necessary arrangements.

We look forward to your confirmation and feedback.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: miércoles, marzo 5, 2025 6:11 p.m.

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hi Mariana and all, just made wire through our business bank Mercury. You should receive notification directly from the bank via your emails as well, but attached her for your reference as well. Please confirm receipt and next steps when you have a chance. When can we expect to start? Want to stay informed so we can share progress with our US attorneys as well.

Thank you as always - Nick

From: Nick <nick@aribia.llc>
Sent: Friday, February 28, 2025 9:16:48 AM
To: Mariana Osorio <mariana.osorio@medellinlegal.com>; Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Subject: Re: Request for Lease Agreement

Hi Marina, thank you and see attached! - Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Monday, February 24, 2025 at 2:58 PM
To: Nick <nick@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Nick,

Please find attached the Engagement Letter for your review. When you have a moment, kindly sign it and share the payment receipt with us. Once received, we'll guide you through the next steps and the estimated timeline.

If you have any questions, feel free to reach out.

Looking forward to your response.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Monday, February 24, 2025 2:21:07 PM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi Mariana,

Let's proceed with what we have planned to date / your recommendation to proceed step by step.

However if the offer should not be accepted, let's also prepare for gaining access to the residence for appraisal, inspection, and needed photos/etc for the listing.

Ideally we would proceed with the sale without the tenants in the unit, however i think regardless, we will still need to proceed once i get okay to from my attorneys here in the US.

Can we get the offer and actions taken this week? Thanks

- Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Sent: Monday, February 24, 2025 10:23 AM
To: Sharon Jones <sharon@aribia.llc>; Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Subject: Re: Request for Lease Agreement

Hi Nick,

Thank you for reaching out. Regarding the facilitation of access to the property, we would like to clarify how you would like us to assist. Are you referring to drafting the prior notice of entry, providing in-person accompaniment for access, or both?

As for adding the sale to the agreement, we believe the best approach is to proceed step by step. Our priority is to first ensure the eviction process is completed, and then we can issue a separate invoice specifically for handling the sale of the property.

Additionally, please let us know if your intention is to proceed with the sale while the tenants are still under the lease agreement. This could present some legal challenges for a potential buyer, especially considering that the tenants are not making rent payments as they should, which could ultimately impact the property's value.

Please let us know how you'd like to proceed.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Sharon Jones <sharon@aribia.llc>
Enviado: jueves, febrero 20, 2025 6:23 p.m.
Para: Mariana Osorio <Mariana.osorio@medellinlegal.com>; Nick <nick@aribia.llc>
CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi Mariana, everything looks good to move forward – with one question, can we add to this agreement or in an additional agreement the facilitation of access to the property for appraisal and review by listing agent (also, can we go ahead and get fees/agreement for you all to handle the sale as well?)
Thanks, Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Wednesday, February 19, 2025 at 10:09 AM
To: Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Nick,

I hope this message finds you well. I just wanted to kindly follow up to see if you had a chance to review the letter I sent. Please let me know if everything was clear or if you have any questions. I would appreciate hearing your thoughts on how you'd like to proceed with the next steps.

Looking forward to your response.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Mariana Osorio <Mariana.osorio@medellinlegal.com>

Enviado: Monday, February 17, 2025 4:06:55 PM

Para: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hello Nick,

I hope you are doing well.

No problem at all, we hope you can read the letter again—we completely understand.

Regarding your first question about whether there is a way to enter and take photos to list the apartment for sale, the answer is yes. The lease agreement signed by both parties includes a clause that allows the property to be sold, provided that tenants are given 30 days' notice before it is shown to potential buyers. It also allows for visits, which must be notified at least 24 hours in advance. Taking photos to list the apartment for sale is permitted as long as tenants receive 24 hours' prior notice.

Below is the relevant clause:

SALE OF THE PROPERTY:

- a) **Notification:** If the Landlord decides to sell the property, the Tenant will be notified in writing at least 30 days before the property is listed or shown to potential buyers.
- b) **Access for Visits:** The Tenant agrees to allow reasonable access to the property for the purpose of showing it to potential buyers. The Landlord or the Landlord's agent will provide at least 24 hours' notice before any visit. The Tenant shall ensure that the property is in a presentable condition for such visits.
- c) **Termination Due to Sale:** If the property is sold and the new owner wishes to occupy or use it in a way that requires the Tenant to vacate, the Landlord will provide the Tenant with a written termination notice in accordance with the 30-day notice period specified in Clause 7.

Regarding your second concern, we completely understand that the idea of offering an additional payment may raise doubts due to the tenants' current non-compliance. However, the incentive is key to trying to resolve the situation without resorting to legal action, which would be much longer and more tedious. We believe that without the incentive, the only way to resolve this issue would be through legal proceedings, whereas the additional amount may provide an opportunity for them to vacate and allow the sale to proceed, which we understand is one of your main priorities.

Please let us know if you have any questions about the letter or if your needs have changed and you would like to omit any services. We are at your disposal.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: lunes, febrero 17, 2025 1:08 p.m.

Para: Mariana Osorio <Mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Asunto: Re: Request for Lease Agreement

Ok, great... Let me review again, my apologies.. have been overwhelmed with the US legal requests.. will review now and get back to you shortly.

The other request was – Is there a way that even if we can't "EVICT" immediately, is there a way to force them to all us access the property to do an appraisal, take pictures and prepare listing... ie... even if they aren't required to get out just yet, can we still require them to allow us access to do the things we need to do to get it prepared for sale?

Also, because they have continued non-payment of rent, I am thinking to not offer them \$ to leave, because they're already living for free... but I'm not sure – as the incentive is what might get them out so... still on the fence. Any thoughts?

Will reread the attachment and get back to you shortly. - Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Date: Monday, February 10, 2025 at 2:00 PM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Hi Nick, good afternoon.

I hope you're doing well.

I really appreciate the payment for the initial legal services.

I wanted to follow up because your previous email wasn't entirely clear to me. If you'd like to proceed with the additional services we agreed upon, please let us know. We already have the power of attorney you granted us.

As a reminder, if you wish to move forward with the additional services, I previously sent you an Engagement Letter. In that document, it is stated that to proceed with these additional services, the first payment of 50% of the total fee would be required. For your convenience, I'm attaching the document again.

Once the 50% payment is made, we will proceed with contacting the tenants and carrying out all the agreed-upon steps.

Please don't hesitate to reach out if you have any questions or if there's anything I can assist you with.

I look forward to your response.

Best regards,



Mariana Osorio Álvarez

Junior Associate

Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7

Medellín, Colombia

Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: lunes, febrero 10, 2025 10:00 a.m.

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

hi Mariana here is the piece of mail.

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From: Nick <nick@aribia.llc>
Sent: Tuesday, January 14, 2025 7:12:49 PM
To: Mariana Osorio <mariana.osorio@medellinlegal.com>; Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Hi Mariana, you can find my [social here](#)... though wouldn't you need ARIBIA LLC EIN as its ARIBIA LLC Business? Just in case, that's [available here](#). I believe the document password is either 561843976 or 883267643. I'm still trying to get token restored to make the payments but coming as soon as that happens . Thanks!

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Tuesday, January 14, 2025 at 2:32 PM
To: Nick <nick@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Nick,

Thank you very much for your response. We fully understand that you have been involved in other businesses, so no worries at all.

We also appreciate the submission of your bank statements for the last six months. However, we noticed that some of the files are password-protected. Could you please confirm if the password is your passport number or another identification number so that we can access them?

Furthermore, we attempted to access the SharePoint link you provided; however, we were unable to open it. Could you kindly confirm if there are additional documents shared there and advise on how we might gain access? Alternatively, we would greatly appreciate it if you could share the documents in PDF format.

Additionally, we would like to remind you that the following documents are still pending in order to proceed with the opening of your escrow account:

- Utility bill showing your residential address.
- Social Security Number (SSN).

We remain at your disposal and look forward to your response to continue with the process.

Kind regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: lunes, enero 13, 2025 3:12 p.m.
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>
CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Task Name	Bucket Name
1. Passport (thought I thought sent previously)	To do
2. Driver's License (I sent previously)	To do
3. Send 2nd Payment \$3.575.887 COP	To do
4. Apostilled POA Signed	To do
5. Send Statements for Escrow	To do

From: Nick <nick@aribia.llc>
Date: Monday, January 13, 2025 at 10:01 AM
To: Mariana Osorio <mariana.osorio@medellinlegal.com>, Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Hi Mariana, yes! We still need support from you, I have just been pulled away on other business – my apologies for the lapse in communication. Where do we stand?

I

Besides the above, and payment, anything else? - nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Monday, January 13, 2025 at 9:46 AM
To: Nick <nick@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Nick,

Happy New Year! We hope this message finds you well.

We would like to check in to see if the legal situation you are currently navigating remains the same or if there have been any new developments we should be aware of.

We also kindly remind you that, in order to proceed with the agreed-upon arrangements, it is necessary to formalize the previously agreed payment. Please feel free to reach out if you have any questions or require further clarification.

Additionally, we would like to check on your progress in gathering the necessary documents to open your escrow account with us. For your convenience, we are sharing the list of required documents below, in case you need further guidance.

- Passport copy
- Secondary government-issued photo ID (e.g., driver's license).
- Utility bill showing your residential address.
- Last six months of bank statements for the funding account.
- Proof of employment/income or self-employment certificación.
- Social Security Number.
- Sales & Purchase Agreement or Letter of Intent (LOI) for the intended property.

We sincerely appreciate your prompt attention to these matters and remain at your disposal for any assistance you may need.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Mariana Osorio <Mariana.osorio@medellinlegal.com>
Enviado: martes, enero 7, 2025 9:49 a.m.
Para: Nick <nick@aribia.llc>; Sharon Jones <sharon@aribia.llc>
CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Dear Nick,

I hope this message finds you well.

We would like to confirm whether you successfully sent the power of attorney to our office. Please do not hesitate to let us know if you need any assistance or if everything is in order.

We also kindly inquire if there are any updates regarding the pending payments in our favor. We would greatly appreciate any information you can provide on this matter.

We remain at your disposal for any questions or support you may require and look forward to your response.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Mariana Osorio <Mariana.osorio@medellinlegal.com>
Enviado: Friday, December 27, 2024 12:02:51 PM
Para: Nick <nick@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi Nick,

We hope you are doing well.

We confirm that the address you sent us for our office is correct.

We truly appreciate your attention and diligence on this matter, and we look forward to receiving the documents as soon as you can send them.

Wishing you a happy New Year.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Thursday, December 26, 2024 3:29:20 PM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Thanks. I want to confirm the address for delivery of the apostilled papers is and should they be sent to your attention? I will have them overnighted.

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Sent: Monday, December 23, 2024 8:26:09 AM
To: Nick <nick@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Good morning, Nick,

We hope you're doing well.

Regarding your question, the bank statements can be from any account. This is just compliance information for the bank, so it's fine if they are from Alianza or another bank.

We remain at your disposal to proceed.

Regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: jueves, diciembre 19, 2024 10:12 p.m.
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>
CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi There- got distracted, yes I saw that... I've notarized and sent to be apostille attached notized version while I await apostille.

1. Working on the rest now.
2. Having issues getting into Alianza again, but will keep you posted regarding payment.
3. For the escrow, do you need the statements from Alianza as I'll be paying from the Colombia account?

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Thursday, December 19, 2024 at 6:03 PM
To: Nick <nick@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Nick,

We hope this message finds you well.

We would like to remind you that it is not sufficient for the power of attorney to be solely digitally signed. It must also be apostilled to have full legal effect in Colombia. This is necessary for us to proceed with the required actions on behalf of ARIBIA LLC.

Our clients have used a service called Apostille Pro's to handle this in the past to handle the apostille process for them. They are fast and the process is quite straightforward: <https://www.apostillepros.com/>

Please let us know if you have any questions or need further assistance.

Kind regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: jueves, diciembre 19, 2024 10:39 a.m.

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

thank you Mariana and team! appreciate your patience as I was detained by other business. see attached signed power of attorney. I am making my way through other documents and working on funds transfer to you shortly, but didn't want to delay this one any further.

- Nick

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Monday, December 16, 2024 3:32:37 PM

To: Nick <nick@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Dear Nick,

I hope this message finds you well.

Please find attached the following documents related to our services:

1. **Invoice:** Corresponds to the pending initial services.
2. **Engagement Letter:** Outlines the new services to be provided, including costs and payment terms. We kindly ask that you return it signed at your earliest convenience.
3. **Power of Attorney:** This document must be signed and apostilled to begin the corresponding procedures.

Our clients have used a service called Apostille Pro's to handle this in the past to handle the apostille process for them. They are fast and the process is quite straightforward: <https://www.apostillepros.com/>

Additionally, regarding your interest in our escrow service, we require the following information and documentation to complete the KYC process and proceed with the next steps:

- **Passport copy**
- **Secondary government-issued photo ID (e.g., driver's license).**
- **Utility bill showing your residential address.**
- **Last six months of bank statements for the funding account.**
- **Proof of employment/income or self-employment certification.**
- **Social Security Number.**
- **Sales & Purchase Agreement or Letter of Intent (LOI) for the intended property.**

In response to your query, we confirm that MLP also provides legal support for property purchase and sale processes in Colombia. Please find attached relevant information for your review. Let us know if you're interested.

Regarding access to the apartment, we reviewed the lease agreement and found a "sale of property" clause stating that tenants must allow visits related to the sale, provided they are notified 24 hours in advance. Therefore, we recommend sending both a physical and digital letter to the tenants to notify them and enforce this contractual clause.

Lastly, we will make the necessary adjustments to the timelines to send the documents to the tenants.

Please don't hesitate to reach out if you have any questions or need further clarification.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: Friday, December 13, 2024 3:23:48 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hi Mariana, all looks good except for the dates are 2024 not 2023. The last credited payments correspond to the months of February, March, and April ~~2023~~ 2024

This is Pilar's number - +57 (305) 817-9465

This is Camilo's +57 (319) 560-7732

Luisa's email is ariaslulu1@gmail.com, you can try her whatsapp but I think she got a new number. +16304424310

And yes, we would like you to help with the escrow, the coordination, the communications with the tenants, and will await the POA document. What is the cost for the services? Also looking ahead to sale... do you guys also provide those services for real estate sales? Because we'll want to get on that simultaneously.

Say they don't accept whatever... we still would like to move forward with gaining entry for an assessment & valuation of the property. That needs to happen whether or not they're evicted. Not sure on the actions we can take, but I'm assuming there's some notice or something that can be enforced for us to at least access our property?

Thanks as always, and would like to move quickly on this part of it... so we can get it out before the holidays....

-Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Date: Thursday, December 12, 2024 at 5:20 PM

To: Nick <nick@aribia.llc>, Sharon Jones <sharon@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Dear Nick,

I hope this email finds you well.

We are pleased to officially deliver the requested documents: the private eviction agreement and the termination notice, both adjusted in accordance with your instructions. These documents outline the amount currently owed by the tenants and specify that the refrigerator and washing machine within the property are owned by ARIBIA LLC and must remain in place following the eviction. Please review the documents at your earliest convenience and confirm if they are accurate.

With the submission of these documents, we consider the initial services agreed upon to be concluded.

Clarification of Payment History

In your previous email, you stated: *"However, no payments have been received for the months of June through December 2024."* We understood that the last payments from the tenants were made in February, March, and April 2023, with no payments received thereafter. Could you confirm if this was a typographical error? The documents reflect 2023 as the last year of payment.

Timeline for Tenant Processing

Regarding your request to allow the tenants one business day to process the documents, we believe that this timeframe may be too short given the logistical and strategic considerations involved. Instead, we propose the following approach:

1. Establish prior communication with the tenants to send and briefly explain the documents.
2. Allow one business day for the tenants to review the documents and notify their intent to sign at the notary.
3. Schedule the signing at the notary for the following day, ensuring a logical and practical timeline.

While we acknowledge the tenants' past noncompliance, we believe this approach will improve their understanding of the agreement and streamline the process.

Proposed Additional Services

In light of your additional requests, we propose the following services to support the agreement's execution:

1. Opening an escrow account – To facilitate payment to the tenants upon their vacating the property.
2. Drafting a special power of attorney – Enabling our firm to represent ARIBIA LLC in signing and executing the agreement at the notary, as well as handling communications with the tenants.
3. Direct communication and negotiation with the tenants – Ensuring clear and effective interactions to finalize the agreement.

If you approve these additional services, we will promptly prepare the corresponding engagement letter for your review and proceed with execution upon your confirmation.

Please feel free to reach out with any comments or questions. We remain at your disposal to ensure a smooth and successful resolution.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Mariana Osorio <Mariana.osorio@medellinlegal.com>
Enviado: Wednesday, December 11, 2024 7:06:34 PM
Para: Nick <nick@aribia.llc>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Dear Nick,

We hope this message finds you well.

Thank you very much for your analysis of the documents we sent. We wanted to let you know that we will incorporate your requests into the documents, and these will be sent to you tomorrow.

Additionally, we are pleased to inform you that we collected the deed for your apartment from the notary today. Please find a scanned copy of it attached to this email.

Regarding the communication with the tenants, we agree with your suggestion. After discussing it with the team, we are happy to assist you in establishing contact with them. For this, we will need their phone numbers and email addresses to proceed.

Furthermore, we would need you to grant us a special power of attorney to handle the following:

1. Communication with the tenants.
2. Representation for signing the private eviction agreement at the notary's office, should the tenants decide to sign and formalize it.

If you agree, we can draft the power of attorney and send it to you tomorrow for your review and signature. Please let us know if this works for you.

Feel free to reach out if you have any questions or need further clarification.



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: Wednesday, December 11, 2024 10:05:30 AM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

Dear Mariana,

Thank you again for your detailed guidance and support in this matter. We wanted to provide some updated information and confirm next steps to move forward.

1. Payment Timeline:

The tenants made payments for the months of March, April, and May 2024. However, no payments have been received for the months of June through December 2024, leaving a significant outstanding balance of 19,774,080 COP. Please ensure this is reflected in all relevant documents, including the termination notice and private eviction agreement.

2. Proposed Action Plan and Timeline:

- We are ready to move forward with sending the termination notice and the private eviction agreement immediately.
- While we understand the tenants are to be given two business days to review and execute the agreement, we would like to explore whether this process can be expedited to one business day to maintain momentum and minimize delays.
- If this is not feasible, we will proceed with the two-day timeline but request a detailed breakdown of how this will be executed logistically (e.g., service of documents, tracking acknowledgment).

3. Authorization for Communication on Our Behalf:

After discussing and reviewing the interactions to date with the tenants, we don't feel another attempt by us to engage them directly will be of help, given the negative outcomes and personal nature of how they have handled each interaction.

However, we do agree it would be helpful for them to have a more personal engagement and understanding of what's being sent. As such, we are open to a member of your team contacting the tenants directly on ARIBIA LLC's behalf to communicate the terms and importance of the eviction agreement. This could potentially increase the likelihood of compliance and ensure the process is handled with professionalism and neutrality. Please confirm if this is advisable or if there are specific legal considerations we should be aware of.

4. Property-Specific Items:

As previously noted, ARIBIA LLC owns the refrigerator and washing machine inside the unit. These items must remain on the property after vacating. We would like to include this requirement explicitly in the eviction agreement to prevent any misunderstandings.

5. Other Details:

We are aligned with the suggested use of the escrow service for fund transfers upon completion of the eviction, and we agree that leveraging the Conciliation Center at the Medellín Chamber of Commerce would be the most effective next step if the agreement is not executed.

We appreciate your continued guidance and will rely on your expertise to ensure the documents are served correctly and the process remains legally compliant.

Please let us know if there are any additional documents or authorizations you require from us to move forward.

Looking forward to your response.

Warm regards,
Nicholas Bianchi
President, ARIBIA LLC
nick@aribia.llc
+1 872-274-2421

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Friday, December 6, 2024 11:20:31 AM

To: Nick <nick@aribia.llc>; Sharon Jones <sharon@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Good morning, Nick,

We hope this message finds you well.

Attached, you will find our proposal for the unilateral termination letter and the private eviction agreement. We have made some improvements and adjustments to the wording to ensure the documents are clearer and more practical to execute. We believe these modifications make the agreement more feasible and fair for both parties. Please review them and let us know if you agree with the proposed terms.

Below, we provide detailed answers to your questions:

1. Notary signing:

In Colombia, notaries do not attend in-person signings at alternate locations. For a document to be registered, both parties must voluntarily go to the notary office. As stated in the agreement, the eviction agreement will be signed at a notary's office to increase pressure on the occupants and to ensure the document is properly notarized.

2. Eviction guarantees:

We understand your concern about ensuring the eviction is carried out effectively. For this reason, we propose that a third party designated by ARIBIA LLC oversee the eviction process to ensure compliance with the agreed terms.

3. Fund transfers to the occupants:

Regarding the proposed funds, we have access to an escrow service (information attached) that allows the funds to be transferred to the occupants only after the eviction has been completed. This MLP service involves additional costs and administrative steps that need to be managed to make it effective.

4. Recommended order of actions:

We suggest the following chronological order for the actions:

- First, a member of ARIBIA LLC should contact the occupants to inform them about the proposed solutions to the dispute. Re-establishing communication with them prior to sending the documents is key to understanding their willingness to negotiate. Simply sending the documents without prior communication may not be effective. It's important to listen to them, have conversations where the intention to resolve the issue is expressed, and then send the documents
- Send the unilateral termination letter, notifying them that their occupation is now illegal and applying pressure for the eviction.
- Next, send the private eviction agreement, emphasizing the financial benefits it offers.
- Both documents can be sent through all available communication channels to ensure the occupants receive and consider them.

5. Conciliation:

We agree to proceed with conciliation if the agreement does not succeed. The time required for this process depends on the selected Conciliation Center. We recommend the Conciliation Center of the Medellín Chamber of Commerce (located in El Poblado), as it offers virtual conciliation services, allowing you to participate from outside the city.

6. Compatibility of the documents:

It is possible to send both the termination notice and the eviction agreement. The termination notice informs the occupants that the contract has ended and that their occupation is illegal, while the agreement seeks to facilitate their eviction. These documents are independent and will not create legal issues if presented in court. Under Law 820 of 2003, as the property owner, you have the right to terminate the contract due to non-compliance and to set the terms you deem appropriate for the eviction.

7. Signing through a power of attorney:

Your presence in Medellín is not necessary for signing the agreement at the notary's office. You can grant us a power of attorney to sign on your behalf with the same legal validity. If you agree, please let us know so we can inform you of the costs associated with drafting the power of attorney and accompany the signature at the notary.

8. Virtual conciliation:

As mentioned earlier, the Conciliation Center of the Medellín Chamber of Commerce allows virtual conciliation, meaning you would not need to be physically present in the city for this process.

We look forward to hearing your thoughts and are available to address any changes or concerns you may have. We hope our proposal meets your expectations and are here to assist with any additional questions.



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: Thursday, December 5, 2024 7:53:23 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Thanks Mariana! Do let me know if you're missing any of the supporting documents. Time is of the essence, so will get anything to you needed as quickly as we can. - Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Wednesday, December 4, 2024 at 3:16 PM
To: Nick <nick@aribia.llc>, Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>, Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Hi Nick,

Thank you for reaching out. Yes, we received your email and will conduct a thorough investigation to provide you with the best possible response.

We will get back to you tomorrow to finalize the details.

Regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Wednesday, December 4, 2024 3:13:44 PM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi Mariana , following up to make sure huh received this and if you had any questions

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From: Nick <nick@aribia.llc>
Sent: Tuesday, December 3, 2024 10:38:01 AM
To: Mariana Osorio <mariana.osorio@medellinlegal.com>; Sharon Jones <sharon@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Dear Mariana,

Dear Mariana,

Thank you for your detailed legal opinion and continued support. Based on the framework you provided and ARIBIA LLC's objectives, I would like to proceed with a strategy that prioritizes regaining possession of the property while maintaining fairness and professionalism. Below is the proposed course of action for your review and recommendations – of course deferring to your expertise and guidance on what's possible within the law and what would be the most expeditious. We look forward to your review and feedback. (if you could also kindly send over any estimated/updated timing or incremental costs with guidance that'd be great. We've already lost so much money due to this elongated ordeal we're needing to be conscious of budget, but also cognizant that time is also costing us a significant amount of money. Finally, I have an agent I was speaking with prior to the refusal of the tenant to leave, so I'd like to restart that conversation so any timing estimates when you have them would be greatly appreciated. And let us know if you're missing any of the documents you may need from us! - Nick

Proposed Final Approach

1. Termination Notice and Immediate Execution Plan

- Deliver a termination notice under **Article 22 of Law 820 of 2003**, citing extensive non-payment as the grounds for termination.
- Accompany the notice with a final, **time-sensitive goodwill offer**:
 - **2,200,000 COP** total: 1,600,000 COP for temporary accommodations and 600,000 COP for moving/storage costs.
 - [Sample Draft Termination](#)
 - [Sample draft agreement to vacate](#)

2. Conditions for Vacating

Tenants must comply with the following conditions by **12:00 PM on the day of notice delivery**:

- Sign a legally binding agreement confirming:
 - Voluntary and unconditional vacating of the premises.
 - Full understanding of the terms, signed without coercion.
 - Waiver of future claims or disruptions to ARIBIA LLC's management of the property.
 - Agreement not to engage U.S.-based family or associates to interfere with proceedings.
 - Acknowledgment that the goodwill payment does not absolve outstanding debts but will not increase the total owed.
-

3. Execution Logistics

- A **legal representative or notary** will be present to oversee and ensure enforceability of the agreement.
 - Funds to be transferred to tenants **immediately upon physical handover** of the property, using escrow or a third-party service if necessary.
-

4. Post-Move Coordination

- If tenants require additional time to remove belongings, ARIBIA LLC will arrange one supervised access within 7 days of the signature of the agreement under the presence of a police officer or representative (or otherwise recommended). Could we stipulate that or should be stipulate that anything remaining after a certain time is assume abandoned
 - **Document ownership** of ARIBIA LLC property the refrigerator, washing machine and ensure these items remain on-site.
-

5. Positioning for Conciliation

Should the tenants refuse the goodwill offer, ARIBIA LLC will proceed to conciliation while demonstrating:

- Multiple efforts to resolve the matter amicably.
 - Reasonable offers that were rejected or ignored.
 - Documented history of non-payment and non-compliance.
-

6. Judicial Eviction

If conciliation fails, ARIBIA LLC will escalate to judicial eviction. Please confirm:

- Estimated timeline for judicial proceedings.
 - Steps to streamline the process to minimize delays.
-

Legal Protections and Agreement Acknowledgments

To ensure enforceability and protect ARIBIA LLC, the on-site agreement should include:

1. **Acknowledgment of Voluntariness:** Tenants confirm they are signing freely, voluntarily, and without coercion.
 2. **Understanding of Terms:** Explicit language ensures tenants fully understand the agreement and its consequences.
 3. **Waiver of Future Claims:** Tenants waive rights to disrupt ARIBIA LLC's management or possession of the property.
 4. **Binding Nature:** Agreement is final and legally binding under Colombian law.
 5. **Notarization/Witness:** Ensure the agreement is signed in the presence of a notary or legal witness if required.
-

Follow-Up Questions

1. **Notification and Execution Timeline**
 - Is it legally permissible to deliver the termination notice and vacate agreement simultaneously?
 - Would this withstand legal scrutiny if contested?
 2. **Conciliation Readiness**
 - Can prior notices (e.g., final demand letters) count toward the 30-day notice period, enabling immediate conciliation?
 3. **Costs and Timelines**
 - Estimated costs for:
 - Drafting and serving the termination letter and agreement.
 - Managing the escrow or fund transfer.
 - Completing conciliation and judicial eviction.
 4. **Presence in Medellin**
 - Is my physical presence required at any stage, or can representatives or attorneys manage this process entirely?
-

Key Objectives

ARIBIA LLC's primary goal is to regain possession of the property promptly, avoiding further delays while maintaining professionalism and demonstrating fairness. This strategy balances a final reasonable offer with firm legal action to position us favorably for conciliation or subsequent proceedings.

I have copied **Sharon Jones**, Senior Advisor and member of ARIBIA LLC, to this email. She has vested capital and is authorized to provide direction and conduct business on my behalf if I am unavailable.

Thank you for reviewing this proposed strategy. I look forward to your feedback and guidance to finalize the next steps.

Warm regards,
Nicholas Bianchi
President, ARIBIA LLC

From: Nick <nick@aribia.llc>

Sent: Friday, November 29, 2024 7:25:49 PM

To: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Thank you so much for this very thorough opinion. Before moving forward with anything let me check with my attorney here because we also have separate proceedings happening here. I agree with your analysis on the approach. Knowing the family, I don't think though maybe you will find? any assets to seize. Additional, Pilar who is the mother residing there is old and while it is necessary to do what needs to be done to sell the property, i wish to do so with the least amount of stress on her, though obviously will be a stressful situation. That also being said, i think to be successful they will have to know that it is serious enough.

I will get back to you after speaking with my attorney, but i think the conciliation and showing them the gravity of the situation and lack of other options and allow them to save face in leaving immediately. OR if we have some sort of way to next to guarantee their compliance, allow them to stay IF they let the property be show with no interruptions, and once it is sold vacate, i would still consider giving them a potential small percentage of the net sale price to help them transition elsewhere, but very much lower than i offered prior.

Given it's a community, do you think we should involve the building association?

Thanks and more soon.

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From: Nick <nick@aribia.llc>

Sent: Friday, November 29, 2024 7:05:08 PM

To: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Thank you, I am not in the city. My primary goal is to get it sold, and i believe now it will have to be empty to be sold - also a note the company, ARIBIA LLC owns the refrigerator and the washing machine inside the unit so that should be left there. Let me read these documents and get back to you. thank you!

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Friday, November 29, 2024 6:40:39 PM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Hi Nick,

I confirm that we received the Alianza payment, and we greatly appreciate your swift action on this.

Attached, you will find the legal opinion we drafted regarding your case. It is important to note that these are just recommendations. We encourage you to review the document carefully and let us know if you agree with requesting unilateral termination in the letter to the tenants. This will help us guide the letter accordingly.

Regarding the conciliation process, we can assist by recommending reliable conciliation centers in the city. Similarly, for judicial processes, we could refer you to law firms specializing in litigation of this nature.

Lastly, we would like to know if you are currently in the city so we can determine how to handle the police eviction process, if necessary.

We look forward to your response.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: Wednesday, November 27, 2024 3:35:52 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hi Mariana, apologies again for the delay! See attached confirmation. Can you please confirm receipt of funds from Alianza? Thank you!

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Monday, November 25, 2024 10:56 AM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Good morning Nick,

I hope this email finds you well.

We haven't heard back from you regarding our last communication, and we want to ensure everything is on track. Please let us know if there are any updates or questions you might have, or if there is anything we can do to assist you further.

We look forward to hearing from you soon.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur - 145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Mariana Osorio <Mariana.osorio@medellinlegal.com>

Enviado: Tuesday, November 19, 2024 3:03:42 PM

Para: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hello Nick,

I hope you're doing well.

We appreciate you staying on top of your process and ensuring that Alianza is handling the payment. We understand that delays can occur, so there's no need to worry. Likewise, we are already working on the legal opinion and the letter.

Thank you as well for informing us that the tenants did not make this month's payment either, which clearly increases the total debt. We will take this into account when providing our services.

Thank you very much.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: martes, noviembre 19, 2024 12:44 p.m.

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hola Mariana, I am working on processing payment today, they've switched the process a bit, so working through it – hopefully will have confirmation shortly.

On another note, the tenants have not paid the rent due on 11/15/2024 yet either.

Back to you shortly with payment confirmation

- nick

From: Nick <nick@aribia.llc>

Date: Tuesday, November 19, 2024 at 1:17 AM

To: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Amazing thank you! I sent a request to Alianza to make the first transfer of 50% of the retainer to the provided account. Will let you know when I receive confirmation. -Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Date: Monday, November 18, 2024 at 8:24 PM

To: Nick <nick@aribia.llc>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Subject: Re: Request for Lease Agreement

Hi Nick,

I hope you're doing very well.

Thank you very much for sending the signed letter. I wanted to let you know that we've already started evaluating your situation to proceed with the two contracted services.

Additionally, this week we'll be collecting the deed to your property and will make sure to send it to you.

If we have any questions or requirements, we'll be reaching out to you.

Have a great week!

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: Friday, November 15, 2024 4:56:58 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>

Asunto: Re: Request for Lease Agreement

Hi Mariana, thank you and thank you for your patience. See attached. Will be working on payment from Alianza and get back to you if i have any questions. Please do keep me updated on timeline and status and if you need anything from me (besides confirmation of payment)

Best Regards,
Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Sent: Thursday, November 14, 2024 7:36 AM
To: Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Subject: Re: Request for Lease Agreement

Good morning, Nick.

I hope this message finds you well.

Attached, please find the engagement letter with the requested adjustment. Of course, it can be issued in the name of your company, as it is the entity involved in the dispute.

We would appreciate receiving it signed at your earliest convenience so we can begin our work.

Have a great day!



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Wednesday, November 13, 2024 4:42:49 PM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>; Cynthia Allison <cynthia@aribia.llc>
Asunto: Re: Request for Lease Agreement

Hi Mariana, (also copying in my colleague Cynthia Allison to keep her abreast of the process.

Thank you for your response and for the engagement letter outlining the services you'll provide. I appreciate your team's expertise and look forward to working together.

After reviewing the engagement letter, I wanted to clarify that ARIBIA LLC holds the title to the property and is the primary party involved in the lease agreement and related issues. To ensure that the representation fully aligns with our needs, would it be possible to adjust the engagement to name ARIBIA LLC as the client?

Representing the entity directly would allow for a clearer alignment of interests, especially given that the lease obligations and any potential enforcement actions primarily concern the entity. This approach would also provide the entity with the most appropriate legal standing and protection.

If needed, I'm open to a dual engagement where both ARIBIA LLC and I are represented. This would allow me to remain personally involved while ensuring the entity's interests are fully prioritized.

Please let me know if you have any questions or require additional details to make this adjustment. I appreciate your attention to this matter and am looking forward to our work together.

Warm regards,
Nicholas Bianchi
President [ARIBIA LLC](#)

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Sent: Tuesday, November 12, 2024 12:29 PM
To: Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>
Subject: Re: Request for Lease Agreement

Dear Nick,

We are pleased to serve as your legal counsel in Colombia. At MLP, we are committed to protecting your interests with expert legal services.

Please find the engagement letter attached, detailing our services and corresponding fees.

Our experienced team is ready to guide you through any complex legal and accounting issues. We will work closely with you to develop a strategy that aligns with your goals, keeping you informed every step of the way.

Regarding your question about the public deed, it is true that it is necessary and important for the moment when you decide to sell your property.

We look forward to working with you. If you have any questions, feel free to contact us.

Sincerely,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>
Enviado: Tuesday, November 12, 2024 10:28:33 AM
Para: Mariana Osorio <mariana.osorio@medellinlegal.com>
Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>
Asunto: Re: Request for Lease Agreement

Thanks Mariana, I'm assuming the document is needed for the sale, correct? If so then I don't currently have another way to obtain it as I believe it was sent to the property address. So yes, if you could add it. Sending Alianza a note now to see how we might proceed with payment!

From: Mariana Osorio <mariana.osorio@medellinlegal.com>
Date: Tuesday, November 12, 2024 at 8:25 AM
To: Nick <nick@aribia.llc>
Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>
Subject: Re: Request for Lease Agreement

Good morning Nick,

Regarding the alliance payment, we can certainly receive it as proposed, and we'll be attentive to any specific details you may need.

There's no issue with you not being in Medellín; we can retrieve the document from the notary. However, this would incur an additional cost of 650,000 COP / 156 USD.

If you agree to cover this cost, please let us know, and we will send you the engagement letter today so we can begin the necessary processes.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

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De: Nick <nick@aribia.llc>

Enviado: Saturday, November 9, 2024 8:25:52 AM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Asunto: Re: Request for Lease Agreement

Hi Mariana, thanks for your patience, Ingot confirmation from my US attorney that we should move forward on both. I'm going to go ahead and send Alianza a note regarding payment, i believe they'll ask for details from you to execute a transfer.

- Nick

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From: Nick <nick@aribia.llc>

Sent: Friday, November 8, 2024 3:56:04 PM

To: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Subject: Re: Request for Lease Agreement

Hi Mariana, thank you! I think I would like to move forward with both... but am waiting on conformation from my attorney in the US on when we would like to send the communication... Additionally, for payment I have an account at Alianza that I will pay from, if that works for you? Also, I am not located in Medellín currently, so is there an alternate way to obtain the deed in lieu of me going to get it? Thanks - Nick

From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Date: Thursday, November 7, 2024 at 10:18 AM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>, Mariana Velez <Mariana@medellinlegal.com>, Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Subject: Re: Request for Lease Agreement

Hello Nick,

We hope you are doing well.

Below, we will address your questions:

1. Additional costs depend on how you choose to resolve your situation. Remember that in the legal opinion we will provide, if you wish to acquire it, we will explain the possible alternatives you have to resolve your case, and the potential costs associated with each. For now, you would only assume the cost of the legal opinion and the letter to the tenants, if you wish to proceed with that.
2. For now, we can inform you that the most effective solution we see is reaching an agreement with the tenants, finding a way for them to pay. If this is not possible, we can explore ways to remove them, even if they do not fulfill their obligation, so that you can sell the property peacefully. However, we will go into more detail on this in our opinion, where we will provide you with judicial solutions and others that may not necessarily involve a legal process.
3. Regarding the engagement letter, it is a letter in which the services and agreed-upon prices are specified in order to begin providing them.
4. If you choose to initiate a judicial eviction process, we can recommend lawyers who specialize in these matters, as our focus is not litigation.
5. Lastly, regarding the public deed, we can see in the purchase agreement you sent that it is at Notary 15 in Medellín. If you want a copy of it, you can go directly to the notary and purchase it. The deed number is 1545 from February 13, 2008.

We remain available if you would like us to send you the engagement letter to begin providing our services.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

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Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: Wednesday, November 6, 2024 10:07:33 PM

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Asunto: Re: Request for Lease Agreement

Hi Mariana,

Thank you for the detailed breakdown of services and associated costs. I appreciate the quick response and your thoughtful approach to my situation.

While I review options, could you provide a general estimate of the potential costs and timeframes for further steps beyond the two outlined services? I understand these can vary, but even a rough range would be helpful for planning purposes.

Additionally, could you clarify the engagement process and specify which actions your firm would handle directly versus any items that might need my involvement? Regarding documentation, I believe the deed was sent to the property address, though I don't have a copy on hand. Any guidance on how to retrieve a certified copy from the local registry would be useful.

Thank you again for your assistance. I look forward to your guidance on the best way forward.

Best regards,

Nick Bianchi

President, ARIBIA LLC

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Wednesday, November 6, 2024 3:45 PM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Subject: Re: Request for Lease Agreement

You don't often get email from mariana.osorio@medellinlegal.com. [Learn why this is important](#)

Good afternoon, Nick.

We hope this message finds you well.

We understand and regret the situation you are going through. We also appreciate the submission of the documents.

We want to inform you that MLP is a firm focused on assisting foreigners throughout the investment process in Colombia, including buying and selling properties, visa procedures, company formation in the country, and everything related to these areas.

Additionally, we assist our clients with any legal matters they may face by providing a legal opinion on their case, which serves as guidance for making decisions in complex situations.

Regarding your particular case, we can offer you two alternatives that are not mutually exclusive:

1. A legal opinion in which we provide solutions to your problem, analyzing the advantages and disadvantages of each option, allowing you to make more informed decisions based on Colombian laws.

Price: \$3,250,000 COP / 756 USD.

2. A letter addressed to the individuals who have failed to make payments, not necessarily proposing payment methods, but emphasizing the specific judicial consequences they may face for non-payment and failure to vacate the property.

Price: \$3,250,000 COP / 756 USD.

Once you let us know if you'd like to proceed with our services, we will send you an engagement letter where you can review the services we provide and their respective fees.

We are here to assist with anything you need. Please feel free to reach out with any questions.

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

Carrera 42 #5 Sur -145 Oficina 813. Edificio Ofi7
Medellín, Colombia
Office: +51 (4) 366 4853

De: Nick <nick@aribia.llc>

Enviado: martes, noviembre 5, 2024 11:59 p.m.

Para: Mariana Osorio <mariana.osorio@medellinlegal.com>

CC: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Asunto: Re: Request for Lease Agreement

Hi Mariana, thank you for your email. I originally purchased the property in 2023 through an LLC i own based in the united states, coordinated through transfer and naturalization of funds in a Alianza brokerage account. i have attached the purchase documents for reference. The property is an investment property as i had previously intended on expanded my short mid/term rental business to medellín, but the situation has changed for me now and am evaluating the likely sale of the property, in favor of other investments.

I've attached a variety of paperwork and my passport as well. I unfortunately don't have the deed. After i went to sign the papers at the government office in Medellín i don't remember where they went.

The current tenants are family of my estranged partner that are delinquent no less than 5 months of rent, and based on our records, more. Regardless of the fact, my primary intent is to liquidate the asset to free up cashflow. I've attached some communications to them as well as my estranged partner and former LLC member, Luisa Arias, who verbally guaranteed the lease. My final communication sought to amicably move forward and included an offer to incentivize them upon sale of the property (which depending counsel, may or may not still be a possibility to offer) My aim is/was not to disrupt their lives but am focused on measures to stabilize the business, which has not been met with much cooperation, as i'm sure you might imagine.

can you please share with me how you typically work with clients? What's the process, what do you handle vs me, what's the pricing structure. appreciate the fast response.

Nick Bianchi
President, ARIBIA LLC
nick@aribia.llc
+18722742421

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From: Mariana Osorio <mariana.osorio@medellinlegal.com>

Sent: Thursday, October 31, 2024 1:47 PM

To: Nick <nick@aribia.llc>

Cc: Andres Durango <andres@medellinlegal.com>; Mariana Velez <Mariana@medellinlegal.com>; Jesus David Gáfaró <jesus.gafaro@medellinlegal.com>

Subject: Request for Lease Agreement

You don't often get email from mariana.osorio@medellinlegal.com. [Learn why this is important](#)

Good afternoon, Nick,

I hope this message finds you well.

We are pleased to assist you with your situation.

To effectively analyze your case and outline the next steps based on your previous email, we kindly ask if you and the tenants have signed a lease agreement. If that is the case, could you please share a copy of the contract with us?

Additionally, we would appreciate any other documents related to the property and your relationship with the tenants. This information will help us understand the legal conditions and determine the appropriate measures to take.

We appreciate your cooperation and look forward to your response.

Wishing you a wonderful day!

Best regards,



Mariana Osorio Álvarez
Junior Associate
Universidad EAFIT

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